

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Judith Le	Team: Squad #12	CCRB Case #: 201706562	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 08/14/2017 7:30 AM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 2/14/2019	Precinct: 46		
Date/Time CV Reported Mon, 08/14/2017 8:20 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/14/2017 8:20 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Silverio	5916	943816	WARRSEC
2. DT3 Billy Acosta	00031	913910	WARRSEC
3. SDS Martin McBride	03081	890477	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Daniel Silverio	Abuse: Detective Daniel Silverio entered § 87(2)(b) in the Bronx.	A . Exonerated
B . SDS Martin McBride	Abuse: Sergeant Martin McBride entered § 87(2)(b) in the Bronx.	B . Exonerated
C . DT3 Billy Acosta	Abuse: Detective Billy Acosta entered § 87(2)(b) in the Bronx.	C . Exonerated
D . DT3 Daniel Silverio	Abuse: Detective Daniel Silverio threatened to damage § 87(2)(b)'s property.	D . Exonerated

Case Summary

On August 14, 2017 at 7:30 a.m., Det. Daniel Silverio, Sgt. Martin McBride, and Det. Billy Acosta of Manhattan Warrant Enforcement attempted to execute an arrest warrant for Albert § 87(2)(b) at his niece, § 87(2)(b)'s apartment, located at § 87(2)(b) in the Bronx. § 87(2)(b)'s son, § 87(2)(b) first heard the officers, and informed his mother that they were at the door. § 87(2)(b) went to the door and Det. Silverio told her that he had an arrest warrant for § 87(2)(b) § 87(2)(b) subsequently allowed Det. Silverio, Sgt. McBride and Det. Acosta to enter her apartment and look for § 87(2)(b) (**Allegations A, B, and C**). After Det. Silverio confirmed that § 87(2)(b) was not there, he allegedly told § 87(2)(b) that officers could come back any time they wanted to look for § 87(2)(b) break down her door and hold her liable for damages incurred (**Allegation D**).

No video footage capturing this incident was provided.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of November 16, 2017, a notice of claim has not been filed by § 87(2)(b) (Board Review #2).

Civilian and Officer CCRB Histories

- Det. Silverio has been a Member of Service for 10 years. He has been a subject in six previous complaints, totaling 14 allegations. In case 201201095, allegations of abuse of authority (frisk) and abuse of authority (stop) returned a CCRB disposition of substantiated. The NYPD disposition for both allegations was guilty, with a penalty of forfeit vacation three days. There are no applicable patterns (Board Review #3).
- Sgt. McBride has been a Member of Service for 31 years. He has been a subject in six previous complaints, totaling eight allegations, with no substantiated allegations. § 87(2)(g)
- Det. Acosta has been a Member of Service for 25 years. He has been a subject in one previous complaint, totaling one allegation, with no substantiated allegations. § 87(2)(g)
- This is § 87(2)(b)'s first CCRB complaint (Board Review #6).

Subject Officers Not Interviewed

§ 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Detective Daniel Silverio entered § 87(2)(b) in the Bronx.

Allegation B – Abuse of Authority: Sergeant Martin McBride entered § 87(2)(b) in the Bronx.

Allegation C – Abuse of Authority: Detective Billy Acosta entered § 87(2)(b) in the Bronx.

Allegation D – Abuse of Authority: Detective Daniel Silverio threatened to damage § 87(2)(b)'s property.

It is undisputed that Det. Silverio went to § 87(2)(b)'s apartment in search of § 87(2)(b). § 87(2)(b) § 87(2)(g)

The DAS Snapshot-Summary for § 87(2)(b) (Board Review #7), executed on November 16, 2017, shows that a warrant was issued to § 87(2)(b) on § 87(2)(b). It has since been closed.

In a detailed phone statement, § 87(2)(b)'s parole officer, Paul Diaz (Board Review #8) stated that an arrest warrant was issued for § 87(2)(b) on § 87(2)(b) and remained active until November 11, 2017. Parole Officer Diaz noted that on § 87(2)(b), § 87(2)(b) was detained and subsequently sent to § 87(2)(b). On November 11, 2017, he completed arrest processing, and the warrant was closed.

Arrest report § 87(2)(b) (Board Review #9) shows that § 87(2)(b) was arrested on § 87(2)(b).

§ 87(2)(b) (Board Review #10) stated that she heard a knock at her door. Her son, § 87(2)(b) told her the police were at the door. Det. Silverio and Det. Acosta told § 87(2)(b) that they had a warrant of arrest for her uncle, § 87(2)(b) who had recently been paroled. § 87(2)(b) assumed that § 87(2)(b) had violated parole, as he had done so before. She also noted that each time he had violated parole the police had come to her address looking for him. § 87(2)(b) looked at a copy of the warrant, and after verifying that her address was on it, let the officers in. § 87(2)(b) asked the officers why they kept coming to her house when § 87(2)(b) did not reside there. Det. Silverio and his partner explained to § 87(2)(b) that her address was on their records. They then told her that because her address was the last known address listed for § 87(2)(b) the officers could come back at any time they wanted to. Det. Silverio also told § 87(2)(b) that the next officers might not be as nice and could knock down her door if they wanted to, and she would be held responsible for any damages incurred. § 87(2)(b) then asked told the officers to leave.

In a follow-up phone statement, § 87(2)(b) (Board Review #11) said that § 87(2)(b) was in the bedroom when he heard the officers at the door. He did not open the front door, but instead went to § 87(2)(b) and told her the police were there, and went back into his bedroom. § 87(2)(b) then went and opened the door. § 87(2)(b)

§ 87(2)(b) noted that her son stayed in his room while the officers searched his room, the storage room, bathroom, kitchen and living room. They did not open drawers, since they were looking for a person.

In a detailed phone statement (Board Review #12), § 87(2)(b) § 87(2)(b)'s son, stated that four to five officers showed up the apartment looking for his uncle, § 87(2)(b). At the time, § 87(2)(b) was in the bathroom or kitchen and § 87(2)(b) answered the door. The officers asked to search the apartment, and § 87(2)(b) asked for a warrant, but they did not have one or show any documents. § 87(2)(b) stated the officers were disrespectful and told § 87(2)(b) they were the police and could do what they wanted. They said they could come back and break the door down. After the officers came in, § 87(2)(b) came out into the living room and explained that § 87(2)(b) did not live there and he did not know why officers kept coming to their apartment. The officers searched the bathroom, kitchen and main quarters of the house and then left.

Det. Silverio (Board Review #13) stated that he was the officer assigned to the arrest warrant for § 87(2)(b) who had a parole violation. He noted that prior to arriving on scene he had conducted searches on § 87(2)(b)'s arrest history and emergency contacts. He believed that § 87(2)(b) was at the residence because § 87(2)(b) had been listed as the emergency contact in five different DOC records. § 87(2)(b) had also visited § 87(2)(b) four times at Riker's, and the address had been listed as § 87(2)(b)'s primary residence on his 2017 HRA benefits application. § 87(2)(b) had since used his HRA benefits near § 87(2)(b)'s address. Det. Silverio also noted that while conducting surveillance for § 87(2)(b) in June and July 2017, he had been told by numerous people in the neighborhood that they knew and had seen § 87(2)(b) in the neighborhood. Det. Silverio went to the apartment with Sgt. McBride and Det. Acosta. Det. Silverio knocked on the door and explained to § 87(2)(b) that he was with the police department, they had an arrest warrant for § 87(2)(b). After several minutes, § 87(2)(b) opened the door. He explained that the officers had a warrant and asked if § 87(2)(b) could show the officers her apartment because they had reason to believe § 87(2)(b) was there. Det. Silverio noted that § 87(2)(b) asked to see the warrant, but parole warrants were not printed until the subject was in custody. Det. Silverio instead, showed a picture of § 87(2)(b). § 87(2)(b) said it would be "fine" and "no problem," for the officers to come in, and Det. Silverio followed her in. Det. Silverio said that he was the only officer that spoke to § 87(2)(b). § 87(2)(b) was upset and kept saying that she had told previous investigators that § 87(2)(b) did not live there and she did not understand why officers kept coming to her apartment. Det. Silverio explained to § 87(2)(b) that as long as § 87(2)(b) was not apprehended, officers might still continue to come to her apartment to look for him. Det. Silverio stated that he "absolutely [did] not" threaten to damage § 87(2)(b)'s property, but instead told § 87(2)(b) that if the police believed § 87(2)(b) was at her residence, they could break down the apartment door to apprehend the subject. Det. Silverio then gave § 87(2)(b) a card with his contact information and left.

CPL §120.80 (4-5) states that in order to effect the warrant of arrest, the police officer may, under circumstances, enter any premises in which he reasonably believes the defendant to be present. Before such entry, the officer must give, or make reasonable effort to give, notice of his authority and purpose to an occupant thereof. If the officer is authorized to enter premises without giving notice of his authority and purpose, or if after giving such notice of his authority and purpose, or if after giving such notice he is not admitted, he may enter such premises, and by a breaking if necessary (Board Review #14).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation A, B, and C** be *exonerated*.

In this instance, there was an active parole warrant for § 87(2)(b) [REDACTED] § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegation D** be *exonerated*.

Squad: 12

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date